

HOUSE BILL 2594

By Faison

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 39, Chapter 17, Part 4; Title 43 and Title 57,
relative to Kratom.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Kratom Consumer Protection Act."

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 4, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Alkaloid" means a compound found in the mitragyna speciosa leaf, including, but not limited to, mitragynine, paynantheine, speciociliatine, or speciogynine;

(2) "Attractive to children" means Kratom products:

(A) Manufactured in the shape of cartoons or animals; or

(B) Manufactured or packaged in a form that bears any reasonable resemblance to an existing candy product that is familiar to the public as a widely distributed, branded food product such that the product could be mistaken for the branded product, especially by children;

(3) "Certificate of analysis" or "COA" means a certificate from a third-party laboratory describing the results of the laboratory's testing of a sample completed within twelve (12) months of submission;

(4) "Food" means a food, food product, food ingredient, dietary ingredient, dietary supplement, or beverage fit for human consumption;

(5) "Kratom extract" means a substance or compound obtained by extraction of the *mitragyna speciosa* leaf, intended for ingestion and containing more than trace amounts of *mitragyna speciosa* and containing other alkaloids of the Kratom plant, which does not contain any controlled substances or levels of residual solvents higher than are allowed in the United States Pharmacopeia General Chapter 467 (USP 467);

(6) "Kratom product" means a food product or dietary ingredient containing any part of the leaf of the plant *mitragyna speciosa* or an extract of the plant *mitragyna speciosa*, that is manufactured as a powder, capsule, pill, beverage, or other form that may be ingested, inhaled, or absorbed through the skin;

(7) "Processor" means a person or entity that prepares, manufactures, distributes, maintains, or sells to a retailer Kratom products, or advertises, represents, or holds itself out as preparing, manufacturing, distributing, maintaining, or selling to a retailer Kratom products;

(8) "Retailer" means a person who sells or holds oneself out as selling Kratom products to the general public;

(9) "Semi-synthetic alkaloid" means a substance derived from an alkaloid naturally occurring in Kratom that has been chemically altered through chemical reactions such as, but not limited to, oxidation, reduction, acetylation, or other processes to change the structure or pharmacological activity of the naturally occurring Kratom alkaloid, and includes, but is not limited to, the synthesis of 7-hydroxymitragynine when produced by chemical alteration of mitragynine;

(10) "Synthesized material" means an alkaloid, metabolite of an alkaloid, or alkaloid derivative that has been created by chemical synthesis or biosynthetic

means rather than traditional food preparation techniques such as heating and extracting, and includes, but is not limited to, fermentation, recombinant techniques, yeast derived, enzymatic techniques, and oxidation; and

(11) "Synthetic Kratom-like compound" means a substance that is not found naturally in the *mitragyna speciosa* plant and is created entirely through laboratory synthesis to mimic the pharmacological effects of Kratom alkaloids.

(b) A processor shall not prepare, manufacture, distribute, or sell, and a retailer shall not sell or expose for sale, any of the following:

(1) A Kratom extract that contains levels of residual solvents higher than are allowed in USP 467;

(2) A Kratom product containing a level of 7-hydroxymitragynine in the alkaloid fraction that is greater than two percent (2%) of the overall alkaloid composition of the product;

(3) A Kratom product containing a synthetic alkaloid, including synthetic mitragynine, synthetic or chemically manipulated 7-hydroxymitragynine, pseudoindoxyl, or another synthetically derived compound of the *mitragyna speciosa* plant;

(4) A Kratom product having a concentration ratio that is greater than one milligram (1 mg) of 7-hydroxymitragynine per serving;

(5) A Kratom product that does not have a COA certifying that:

(A) The contents of 7-hydroxymitragynine in the Kratom product are in compliance with this subsection (b);

(B) The Kratom product tests as absent, negative, undetected, not detected, or less than one (1) colony forming unit per gram for a species of *salmonella* and *escherichia coli*;

(C) That the Kratom product tests as absent, negative, undetected, not detected, or less than one (1) part per million for lead and arsenic;

(D) That the Kratom product tests as absent, negative, undetected, not detected, or less than forty-one hundredths (0.41) parts per million for the heavy metal cadmium; and

(E) That the Kratom product tests as absent, negative, undetected, not detected, or less than three-tenths (0.3) parts per million for mercury; and

(6) A Kratom product that is not clearly labeled with the following information:

(A) Directions for use that include the following:

(i) A recommended amount of the Kratom product per serving that is:

(a) Clearly described on the label for product forms such as capsules, gummies, prepackaged single serving units, and similar product forms; or

(b) For beverages, liquids, or loose powders, a clear instruction or a mark on the package or container that clearly informs the consumer regarding the recommended service size; and

(ii) A recommended maximum number of servings that should be consumed in a twenty-four-hour period;

(B) A listing of the number of servings per container;

(C) The amount per serving of each of the following Kratom compounds:

(i) Mitragynine; and

(ii) 7-hydroxymitragynine if detectable, or a statement that the serving size does not contain a level of 7-hydroxymitragynine in the alkaloid fraction that is greater than two percent (2%) of the compounds of the Kratom product;

(D) A list of all ingredients in each finished Kratom product;

(E) A statement advising against use of the product by individuals who are pregnant or breastfeeding;

(F) A statement advising that it is illegal to purchase or possess Kratom if under twenty-one (21) years of age;

(G) A statement that use of Kratom may be habit forming;

(H) A recommendation to consult with a healthcare professional prior to use of a Kratom product;

(I) The name, mailing address, and physical address of the processor; and

(J) The following statement: "This product has not been evaluated by the Food and Drug Administration. This product is not intended to diagnose, treat, cure, or prevent any disease."

(c) This section does not affect the ability of a processor to mix or blend a Kratom plant material with another substance that is not dangerous and that does not alter the naturally occurring levels of Kratom's alkaloids.

(d) It is an offense for a processor, retailer, or other person to knowingly:

(1) Distribute, sell, or offer for sale a Kratom product or Kratom extract to a person under twenty-one (21) years of age;

(2) Purchase or possess a Kratom product or Kratom extract if under twenty-one (21) years of age; or

(3) Prepare, manufacture, distribute, or sell a Kratom product or Kratom extract if the person is not a processor or retailer.

(e)

(1) A violation of subsection (d) is a Class A misdemeanor.

(2) A processor or retailer who violates subsection (b) commits:

(A) A Class B misdemeanor, punishable by fine only in the amount of five hundred dollars (\$500) for the first offense; and

(B) A Class A misdemeanor punishable by fine only in the amount of two thousand five hundred dollars (\$2,500) for a second or subsequent offense.

(3) It is a defense to prosecution if a retailer proves, by a preponderance of the evidence, that the retailer relied in good faith upon the representation of a processor that the purchased Kratom product or Kratom extract was unadulterated and uncontaminated.

(f) Upon demand by the alcoholic beverage commission, a processor or retailer shall provide, within thirty (30) days, a COA for each Kratom product that is offered for sale.

(g) Upon receipt of a credible violation report on any Kratom product offered for sale, the alcoholic beverage commission shall require the processor or retailer to produce an updated and current COA from a certified independent third-party laboratory within thirty (30) days establishing compliance with the requirements of subsection (b)

for Kratom products, including copies of all product labels. If the processor or retailer does not provide the certificate of analysis in the specified time frame, then the product must be removed, and a stop sales order must be issued for all products covered by this section.

(h) If the alcoholic beverage commission has a reasonable basis to require an independent third-party test of a Kratom product by a laboratory of the commission's choice, then the processor or retailer shall submit payment for the test within thirty (30) days. If the processor or retailer does not tender payment to the commission within thirty (30) days of receipt of the invoice for the testing, then a stop sales order must be issued to the processor or retailer for all products covered by this section.

SECTION 3. Tennessee Code Annotated, Section 39-17-452, is amended by deleting subdivision (a)(3).

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.